

Judicial Review on Health Emergency Law : The Challenge to Judicial Independence of Indonesian Constitutional Court

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Abstract

Judicial independence is crucial for the effective functioning of the Constitutional Court and its ability to deliver impartial and fair judgments. The Indonesian Constitutional Court is entrusted with the responsibility of reviewing the constitutionality of laws, including those enacted during times of emergencies. While emergency laws are often enacted with the intention of addressing urgent situations and safeguarding public welfare, they can also pose risks to fundamental rights and the rule of law if not subjected to proper scrutiny. The independence of the Court in reviewing these laws becomes paramount to ensure that constitutional principles are upheld and potential abuses of power are prevented. Government Regulations in Lieu are temporary regulations issued by the executive branch in urgent situations, effectively bypassing the legislative process. The Indonesian Constitutional Court is tasked with reviewing the constitutionality of these regulations to prevent potential encroachments on legislative authority and constitutional rights. In terms of Covid-19 pandemic, the Constitutional Court was reviewing the Government Regulation in Lieu (Peraturan Pemerintah Pengganti Undang-Undang/ PERPPU) No. 1 on 2020 based on the Court Decision 37/PUU-XVIII/2020. The result of the research shows that the presence of PERPPU actually becomes a double challenge for judges who decide, especially judges who are appointed by the President. In dealing with the Covid-19 Pandemic, The Constitutional Court has the competence to examine the emergency law and has the role in conducting Check and Balance in regard with the case of such emergency situation. Further, the Constitutional Court must hold the independence of the judiciary based on it's impartiality in Court Proceedings.

Keywords: *Constitutional Court; Emergency Law; Independence; Judicial Review.*

A. INTRODUCTION

This article is addressed to analyse the tendency of judicial independence of the Constitutional Court of RI in conducting review over the Emergency Law (Peraturan Pemerintah Pengganti Undang-Undang/ PERPPU) in Indonesia. The competence of the Constitutional Court in reviewing over the Emergency Law (Peraturan Pemerintah Pengganti Undang-Undang/ PERPPU) is based on the Court Decision Number 138/PUU-VII/2009. According to this decision, the court has decided to have the competence to review the Emergency Law. In Indonesia, the Emergency Law has a Constitutional Basis

according to Article 12 of RI Constitution regarding the power of the President in declaring State of Emergency. Article 22 of Indonesian Constitution stipulates that in time of Emergency, the President has the right to make emergency law which the constitution states as the government regulation in lieu of laws. Such emergency law has a limited period, which according to Section 2 of the article, the emergency law must obtain the approval from the DPR during the next session. However, if it is not approved, the law has to be revoked. In Indonesia, there are several cases where the President makes emergency law. Ever since the establishment of the Constitutional Court of Indonesia, there are at least 8 Emergency Laws (PERPPU) that have been submitted to the Constitutional Court.

To this extent, the issue that has been addressed in this article is to assess the judicial independence of the constitutional court while reviewing this emergency law. Since the emergency law under the executive area, which the president has the power to make emergency law. There are specific circumstances which can make it justified to create emergency law, one of which is exigencies compel that stated by the Indonesia Constitution. At this point who can decide the exigencies compel. The answer is obviously the president, since it is the president who takes care of the state administration. So, it is logical that the president knew whenever the state entering the situation of exigencies compel. Several scholars affirm that it was presidential subjectivity to decide.¹

According to the court decision, there are three objectivity indicators for the exigencies compel that may have the consequence that the president is able to make the emergency law. First, there is an urgent need to find the legal solution. Second, there is a legal vacuum. And last, there is no legal procedure and the situation needs legal certainty. This article focuses on the independence of the constitutional court during the emergency situation of COVID-19 which in Indonesia is known as a health emergency situation. During the health emergency,

¹ Jimly Ashidiqqie, *Hukum Tata Negara Darurat* (Jakarta: Rajawali Pers, 2008), 48.

Indonesia has two Emergency Law (PERPPU), there are PERPPU No. 1/2020 on State Finance Policy and the Stability of Financial System for the Pandemic Measures of CoronaVirus Diseases 2019 (COVID-19) and PERPPU No. 2/2020 on The Third Amendment of Law No. 1/2015 on Stipulation of PERPPU No. 1/2014 on the Governor, Regent, and City Mayor Election. Furthermore, this article is comparing Indonesia, the US and the Philippines. The main issue in this article is concerning judicial independence when reviewing the emergency law in particular the health emergency situation. It will look at how the constitutional judges decide the emergency law which is one of the legal products of the executive.²

B. RESEARCH METHOD

The method used in this study is a normative legal research method which functions to find the truth of coherence related to the suitability of the rule of law with legal norms, conformity of legal norms with legal principles, and suitability of actions in accordance with legal norms or principles.³ The result of legal research shall be argumentation, theory, new concept as a solving method for current issue. In this study, the types of legal research that will be used are doctrinal research, theoretical research, and reform-oriented research.⁴ Doctrinal research is conducted to provide a systematic explanation of the rules governing certain legal categories and to analyze the relationship between legal rules.⁵ Theoretical research is carried out to promote a more complete understanding of the conceptual foundations of legal principles.⁶ Reform-oriented research is conducted to evaluate the adequacy of existing regulations by recommending changes to regulations that are deemed

² ODIHR, *Fair Trial Rights and Public Health Emergencies* (Warsaw: OSCE Office for Democratic Institutions and Human Rights (ODIHR), 2021), 6.

³ Peter Mahmud Marzuki, *Penelitian Hukum* (Jakarta: Kencana, 2021), 47.

⁴ Terry Hutchinson, *Researching and Writing in Law*, Fourth Edi (New South Wales: Thomson Reuters, 2018), 7.

⁵ Hutchinson, 8.

⁶ Hutchinson, 8.